

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- x
ELVIN SANCHEZ,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, SERGEANT SEUNGWOO
SEO, and POLICE OFFICERS JOHN DOES NUMBERS
ONE THROUGH TEN,Plaintiff designates Kings
County as the place of trial.Defendants.
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 22, 2020

Yours, etc.

CAITLIN ROBIN AND ASSOCIATES PLLC
CAITLIN ROBIN, ESQ.
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

SERGEANT SEUNGWOO SEO, NYPD Manhattan Housing Bureau, 2768 Frederick
Douglass Blvd, New York, NY 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ELVIN SANCHEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, SERGEANT SEUNGWOO
SEO, and POLICE OFFICERS JOHN DOES NUMBERS
ONE THROUGH TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ELVIN SANCHEZ, by her attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On September 18, 2019, at approximately 11:00 a.m., plaintiff Elvin Sanchez, while lawfully present at work as a Janitor at the 84th Precinct, Brooklyn, New York, was subject to an unlawful assault and battery and excessive use of force by defendant Sergeant Seo, and John Doe New York City police officers. Specifically, Sergeant Seo bodyslammed Plaintiff, for no legal reason, causing him serious physical injury to his arm and shoulder. Plaintiff was treated for his injuries at NYU Hospital. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully assaulted, battered, subjected to excessive force, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ELVIN SANCHEZ is a resident of the state of New York.

3. SERGEANT SEUNGWOO SEO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. SERGEANT SEUNGWOO SEO, was at all times relevant herein, assigned to the 84th Precinct.

5. SERGEANT SEUNGWOO SEO, is being sued in his individual and official capacity.

6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on January 6, 2020.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On September 18, 2019, at approximately 11:00 a.m., plaintiff was at work as a Janitor at the NYPD 84th Precinct, located at 301 Gold Street, in Brooklyn, New York, when the defendant Sergeant Seo unlawfully assaulted Plaintiff without legal justification.

16. Plaintiff is employed as a Custodian Janitor by the NYPD.

17. Plaintiff has worked at the 84th Precinct as a custodian Janitor for the last four years.

18. On this date and time, Plaintiff was doing his job and fixing the soda machine in the 84th Precinct.

19. While Plaintiff was underneath the soda machine, on the ground, cleaning and fixing the machinery underneath, Defendant Seo approached Plaintiff.

20. Defendant Seo, without permission or authority, and with no legal justification, grabbed Plaintiff by his legs, picked him up, and bodyslammed him into the ground.

21. These unlawful actions by Defendant Seo caused Plaintiff serious physical injuries to his wrists, arms and shoulder.

22. Multiple Defendant John Doe officers were standing around laughing at Plaintiff, and slapping Sergeant Seo "high five."

23. Plaintiff was begging for medical attention, but Defendant John Does just kept laughing.

24. Plaintiff asked multiple Defendants to call an ambulance, but no one did.

25. The Commanding Officer of the 84th Precinct then ordered Defendant Seo to take Plaintiff to a local hospital to be treated.

26. Plaintiff was treated at NYU for injuries to his wrist, shoulder, and arms, and was given a referral for wrist surgery.

27. Internal Affairs Bureau investigated the incident, and Defendant Sergeant Seo was found guilty and given a 30 day vacation hit as punishment.

28. Plaintiff has been continually receiving medical treatment for his wrist, shoulder, and arms, and is presently still having trouble performing daily tasks.

29. Plaintiff was out of work for at least three months because of this incident.

30. Plaintiff had to spend over \$3,000.00 on out of pocket medical expenses.

31. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, using excessive force, and denying Plaintiff medical treatment.

32. The unlawful assault, battery, and use of excessive force by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. Defendants owed a duty of care to plaintiff. To the extent defendants claim that the injuries to plaintiff by the defendant police officer was unintentionally caused and that the force used by the defendant against him was unintentional, then the defendants breached that duty of care by injuring his wrist, shoulder and arms.

35. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

36. All of the foregoing occurred without any fault or provocation by plaintiff.

37. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

38. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

39. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The use of excessive force by defendants by, amongst other things, by bodyslamming Plaintiff constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Assault

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Battery

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner bodyslammed Plaintiff with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. Defendants despite being aware that plaintiff was suffering through severe arm, wrist, and shoulder pain while in their custody and required medication and additional treatment from medical professionals, delayed plaintiff's medical treatment and refused to administer and properly procure, immediate and adequate medical attention.

57. The delay in medical treatment to plaintiff's injuries resulted in permanent additional ongoing physical injury and anxiety attacks suffered by plaintiff that would have been prevented if plaintiff received treatment in a timely manner.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Elvin Sanchez. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

64. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise

defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

74. Defendants failed to intervene to prevent the unlawful conduct described herein.

75. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, he was humiliated, and subject to other physical constraints.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

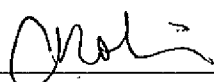
JURY DEMAND

80. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff ELVIN SANCHEZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 22, 2020

By: 
CAITLIN ROBIN AND ASSOCIATES PLLC
CAITLIN ROBIN, ESQ.
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

SERGEANT SEUNGWOO SEO, NYPD Manhattan Housing Bureau, 2768 Frederick Douglass Blvd, New York, NY 10039

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 22, 2020



CAITLIN ROBIN